

12. *Saldana v. Fiber Care Baths, Inc., et al*, Case No. CIVSB2418960
Defendant's Motion for Protective Order
6/26/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Requests for Judicial Notice: The Court would **GRANT** notice as to the notice of entry and order approving the class action settlement in case CIVDS2114736; the First Amended Complaint in this case; the joint further CMC statement filed on October 24, 2025; and the joint IDC brief filed on December 8, 2025.

As to the Motion: The Court would deem the motion **MOOT** in like to the apparent withdrawal of the prior discovery via the new discovery. The parties should meet-and-confer to the extent additional issues remain.

Given the agreement to amend the scope of the class and some apparent shortfalls with the meet-and-confer process, no sanctions are warranted in favor of either party.

Case Summary

This is a putative wage-and-hour class and representative action. Plaintiff seeks to represent similarly situated employees and alleges they were subject to various Labor Code violations in connection with their employment at Defendant Fiber Care. Plaintiff first filed his suit on June 7, 2024. The operative First Amended Complaint (FAC) alleges violations relating to (1) minimum wages; (2) overtime; (3) meal periods; (4) rest breaks; (5) reimbursements; (6) wage timeliness; (7) accurate wage statements; as well as causes for (8) violation of the unfair competition law (UCL); and (9) civil penalties pursuant to the Private Attorneys General Act (PAGA).

Statement of the Law

"The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code of Civ. Proc., § 2031.060(b).) More specifically, Code of Civil Procedure section 2031.060(a), provides that when an inspection or copying of documents or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order.

Analysis

As for the merits of the motion, in the opposition Plaintiff concedes that the class period should be limited from October 22, 2022, onward and that he proposed that amendment to the FAC. Plaintiff also contends he attempted to re-notice the deposition with the revised class period in addition to serving new Special Interrogatories (SROGs) and Requests for Production (RFP) on March 16, 2026, in order to limit the discovery. (Opp., 6:1-6.) In this regard, and to the extent

that the additional discovery serves to supersede the prior requests, the motion appears moot because the prior discovery has been effectively withdrawn. Otherwise, the concession by Plaintiff appears to support the issuance of a protective order since, if nothing else, the written discovery is largely dependent upon the “relevant time period” that predates the prior settlement or, alternatively, the discovery references the “class members,” a term which also appears to include the same temporal reference, though that is not true as to every single discovery request.

13. *Novalk, LLC v. Cirit, et al*, Case No. CIVSB2122277
Defendant’s Motion for Attorneys’ Fees
6/26/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **AWARD** reasonable attorneys’ fees in the amount of \$191,250.00 to Defendants.

Summary of the Law

Generally, attorneys’ fees are borne by each party. (Code Civ. Proc., § 1021; *Pederson v. Kennedy* (1982) 128 Cal.App.3d 976, 978-79.) Nonetheless, attorneys’ fees are recoverable in litigation when authorized by contract, statute, or law. (Code Civ. Proc., §1033.5, subd. (a)(10).) Here, it is undisputed that the Declaration of Restrictions that encumbers all parties’ property provides for attorney fees when sued on the Declaration.

Analysis

Relevant here, after a three-day bench trial in late October of 2025, the Court granted Defendants’ motion for judgment pursuant to Code of Civil Procedure section 631.8 and ordered judgment entered in Defendants’ favor. Now, before the Court, is Defendants’ motion for attorneys’ fees.

Plaintiff argues that under the catalyst theory, it can be deemed the prevailing party because it obtained the objectives of its allegations by Defendants foregoing its claim that Defendant S. Cirit had the right and authority to manage the Shopping Center [FAC, ¶132]; foregoing seeking to extract improper maintenance fees [FAC, ¶132]; removing the blockage to the east access side of the Shopping Center [FAC, ¶135]; and removing any parking restrictions. (FAC, ¶134.) These changes occurred while this case was pending.

Under the catalyst theory, a plaintiff can recover fees if it “establish[es] that (1) the lawsuit was a catalyst motivating the defendants to provide the primary relief sought; (2) that the lawsuit had merit and achieved its catalytic effect by threat of victory, not by dint of nuisance and